

THE JUVENILE JUSTICE (CARE AND PROTECTION OF CHILDREN) ACT, 2015 (Act No. 2 of 2016)
Enactment Authority: Ministry of Women and Child Development
Year of Enactment: 2015

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Section 1: Short title, extent and commencement

Section 1. Short title, extent and commencement.?

- (1) This Act may be called the Juvenile Justice (Care and Protection of Children) Act, 2015.
- (2) It extends to the whole of India.
- (3) It shall come into force on such date as the Central Government may notify.

This Act consolidates the law relating to children alleged and found to be in conflict with law and children in need of care and protection by catering to their basic needs through proper care, protection, development, treatment, and social re-integration.

Section 2: Definitions of child, heinous offences and best interest

Section 2. Definitions.? In this Act, unless the context otherwise requires,?

(12) 'child' means a person who has not completed eighteen years of age;

(13) 'child in conflict with law' means a child who is alleged or found to have committed an offence and who has not completed eighteen years of age on the date of commission of such offence;

(14) 'child in need of care and protection' means a child who is found without any home or settled place of abode and without any ostensible means of subsistence, or who is found working in contravention of labour laws, or who is at risk of marriage before attaining the age of marriage;

(33) 'heinous offences' includes the offences for which the minimum punishment under the Indian Penal Code or any other law for the time being in force is imprisonment for seven years or more;

(45) 'petty offences' includes the offences for which the maximum punishment under the Indian Penal Code or any other law for the time being in force is imprisonment up to three years;

(54) 'serious offences' includes the offences for which the punishment under the Indian Penal Code or any other law for the time being in force is imprisonment between three to seven years.

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Section 4: Juvenile Justice Board

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- (1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973, the State Government shall, by notification in the Official Gazette, constitute for every district, one or more Juvenile Justice Boards for exercising the powers and discharging the functions relating to children in conflict with law under this Act.
- (2) A Board shall consist of a Principal Magistrate (who shall be a Judicial Magistrate of First Class or Metropolitan Magistrate) and two social workers, of whom at least one shall be a woman.

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Section 10: Apprehension of child alleged to be in conflict with law

Section 10. Apprehension of child in conflict with law.?

- (1) As soon as a child alleged to be in conflict with law is apprehended by the police, he shall be placed under the charge of the special juvenile police unit or the designated child welfare police officer, who shall produce the child before the Board without any loss of time but within a period of twenty-four hours of its apprehension.
- (2) In no case, a child alleged to be in conflict with law shall be placed in a police lockup or lodged in a jail.

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Section 12: Bail to a person who is apparently a child alleged to be in conflict with law

Section 12. Bail of child in conflict with law.?

(1) When any person, who is apparently a child and is alleged to have committed a bailable or non-bailable offence, is apprehended or detained by the police or appears or is brought before a Board, such person shall, notwithstanding anything contained in the Code of Criminal Procedure, 1973 or in any other law for the time being in force, be released on bail with or without surety:

Provided that such person shall not be so released if there appears reasonable grounds for believing that the release is likely to bring that person into association with any known criminal or expose the said person to moral, physical or psychological danger or that the person's release would defeat the ends of justice.

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Section 74: Prohibition on disclosure of identity of children

Section 74. Prohibition on disclosure of identity of children.?

(1) No report in any newspaper, magazine, news-sheet or audio-visual media or other form of communication regarding any inquiry or investigation or judicial procedure, shall disclose the name, address or school or any other particular, which may lead to the identification of a child in conflict with law or a child in need of care and protection or a child victim or witness of a crime.

(2) Any person contravening the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to six months or fine which may extend to two lakh rupees or both.

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Section 75: Punishment for cruelty to child

Section 75. Punishment for cruelty to child.?
Whoever, having the actual charge of, or control over, a child, assaults, abandons, abuses, exposes or wilfully neglects the child or causes or procures the child to be assaulted, abandoned, abused, exposed or neglected in a manner likely to cause such child unnecessary mental or physical suffering, shall be punishable with imprisonment for a term which may extend to three years or with fine of one lakh rupees or with both:
Provided that in case where the cruelty is committed by a person employed by or managing an organisation which is entrusted with the care and protection of the child, he shall be punished with rigorous imprisonment which may extend up to five years, and fine which may extend up to five lakh rupees.